

Court No. - 3

Case :- WRIT - C No. - 13234 of 2022

Petitioner :- Rajendra Singh

Respondent :- U.P. Power Corporation And 2 Others

Counsel for Petitioner :- Nikhil Chaturvedi

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri Pankaj Kumar Shukla, Advocate holding brief of Sri Alok Mishra, learned counsel for the respondent nos. 1 and 2.

This writ petition has been filed praying for the following relief:-

"i) Issue a writ order or direction in the nature of certiorari quashing the impugned recovery certificate issued by respondent no.2 dated 05.02.2022 against the petitioner (Annexure no.1 to the writ petition)

ii) Issue a writ order or direction in the nature of mandamus commanding and directing the respondent no.2 to correct the bill of petitioner's tube-well connection No. 5502/000561 and reconnect the electricity to the tube-well of petitioner.

iii) Issue a writ order or direction in the nature of mandamus commanding and directing the respondent no.2 to decide the representation of the petitioner dated 03.11.2021 by passing a reasoned order within stipulated period as fixed by this Hon'ble Court."

Learned counsel for the petitioner submits that petitioner has been regularly paying the electricity dues and yet demand has been created against him even though his electricity connection was disconnected on 22.02.2020. He further points out that Annexure No.8 to the writ petition is consumer ledger in which entry of Rs. 1,32,756/- has been entered on 10.05.2019 by adjustment. He further submits that in the matter of petitioner, twice inspection was carried out, on the request of the petitioner by the Sub Divisional Officer as referred in paragraph 5 of the representation dated 19.03.2020 in which nothing adverse was found and as such demand has been created illegally.

Learned Standing Counsel for the respondents prays for and is granted ten days' time to file counter affidavit. Petitioner shall have four days' thereafter to file rejoinder affidavit.

Put up as a fresh case before the appropriate bench on 24.05.2022.

Order Date :- 9.5.2022

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Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard Shri Nikhil Chaturvedi, learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Shri Anuj Kumar Mishra holding brief of Shri Alok Mishra, learned counsel for the respondent nos.1 and 2.

2. This writ petition has been filed praying for the following reliefs :

"i) Issue a writ, order or direction in nature of certiorari quashing the impugned recovery certificate issued by respondent no.2 dated 5.2.2022 against the petitioner (Annexure No.1 to this writ petition).

ii) Issue a writ, order or direction in nature of mandamus commanding and directing the respondent no.2 to correct the bill of petitioner's tube-well connection No.5502/000561 and reconnect the electricity to the tube-well of petitioner.

iii) Issue a writ order or direction in the nature of mandamus commanding and directing the respondent no.2 to decide the representation of the petitioner 3.11.2021 by passing a reasoned order within stipulated period as fixed by this Hon'ble Court."

3. Learned counsel for the respondent nos.1 and 2/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005

before the respondent no.2 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 24.5.2022

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